

12. 9:00 AM CASE NUMBER: C25-03644
CASE NAME: RENITA WILSON VS. RICHMOND HOUSING AUTHORITY
*HEARING ON MOTION IN RE: JUDICIAL PREFERENCE
FILED BY: WILSON, RENITA
TENTATIVE RULING:

Case is settled and motion was withdrawn by the moving party.

13. 9:00 AM CASE NUMBER: C26-00103
CASE NAME: RODRIGO GARCIA VS. FIGUEROA TANK LINES INC.,
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: SAMSARA, INC.,
TENTATIVE RULING:

Hearing **continued** by the Court to August 14, 2026 in Department 32.

14. 9:00 AM CASE NUMBER: L24-03719
CASE NAME: MIDLAND CREDIT MANAGEMENT INC. VS. TYISHA PAULK
*HEARING ON MOTION IN RE: TO SET ASIDE DEFAULT
FILED BY: PAULK, TYISHA
TENTATIVE RULING:

This is a collection action. Plaintiff filed a complaint against Defendant on May 7, 2024 and default judgment was entered on February 5, 2025. Defendant filed the instant motion to set aside default and default judgment on February 27, 2026. Defendant argues that she was never served with the complaint and the default and default judgment are void as a result.

There was no timely opposition filed to the motion to set aside default, and accordingly, Plaintiff is deemed to have conceded Defendant's arguments. (The Court notes that a late opposition was submitted, though it is not clear that it was served on Plaintiff.) The failure to challenge a contention in a brief results in the concession of that argument. (*DuPont Merck Pharmaceutical Co. v. Sup. Ct.* (2000) 78 Cal.App.4th 562, 566 ("By failing to argue the contrary, plaintiffs concede this issue."); *Westside Center Associates v. Safeway Stores 23, Inc.* (1996) 42 Cal.App.4th 507, 529 ("failure to address the threshold question...effectively concedes that issue and renders its remaining arguments moot"); *Glendale Redevelopment Agency v. Parks* (1993) 18 Cal.App.4th 1409, 1424 (issue is impliedly conceded by failing to address it).)

For the foregoing reasons, the Court **grants** Defendant's motion to set aside default and default judgment. **Defendant is ordered to file a responsive pleading by July 16, 2026.**

In addition, the court notes this action is for less than \$5,000 in damages and is properly heard in the court presiding over limited jurisdiction civil matters. The court transfers and assigns this case for all purposes to Judge Athanasiou, Department 14, currently located in the George C. Carroll Courthouse at 100-37th Street, Richmond, CA 94806.

The court orders the parties to appear at a Case Management Conference in this matter on September 14, 2026 at 8:30 a.m. in Department 14. You may appear remotely by Zoom.

Parties are ordered to file and serve a Case Management Conference Statement ten (10) days in advance of September 14, 2026. The Case Management Conference form is Judicial Council form CM-110. The form can be found at <https://courts.ca.gov/sites/default/files/courts/default/2024-11/cm110.pdf>

To attend by Zoom, please go to the Court's website (<https://contracosta.courts.ca.gov/online-services/court-calendars-and-remote-appearances>) and find the Zoom link for Dept. 14 under "Court Calendars and Remote Appearances."

15. 9:00 AM CASE NUMBER: MSC21-00779
CASE NAME: TEDENEKILSH ZERHIOUN VS. YOSEPH DEMISSIE
*HEARING ON MOTION IN RE: TO ENFORCE JUDGMENT AND FOR ISSUANCE OF WRIT OF POSSESSION
FILED BY: DEMISSIE, YOSEPH
TENTATIVE RULING:

Defendants Hareg Teffera and Yoseph Demissie's motion to enforce the judgment is **continued to August 7, 2026, for further briefing.**

On September 16, 2022, Judge Baskin entered the judgment in this case. The judgement gave Plaintiff 90 days to buyout Defendant. (Judgement ¶15(a).) If Plaintiff is unable to buyout Defendant in 90 days the judgment requires that "the Property will be sold to the highest bidder after being listed. The proceeds of the sale will be divided equally between the parties, less the commission and the mortgage and any